

European Union General Data Protection Regulation (GDPR) Compliance Guidelines

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Article 5: Core Principles Governing the Processing of Personal Data

Personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject.

Purpose Limitation mandates that data is collected for specified, explicit, and legitimate purposes and not further processed in a manner that is incompatible with those purposes.

Data Minimization requires that personal data collected must be adequate, relevant, and limited to what is strictly necessary.

Storage Limitation stipulates that data is kept in identifiable form for no longer than is necessary for the processing purposes.

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Article 33: Mandatory Notification of Personal Data Breaches

Controllers must notify the competent supervisory authority of personal data breaches without undue delay and within 72 hours.

If notification is not made within 72 hours, it must be accompanied by a written explanation providing legitimate reasons for the delay.

When a breach is likely to result in high risk to individual rights and freedoms, the controller must also notify the affected data subjects.

The breach notification must describe the nature of the breach, affected categories of data, and recommended mitigation actions.

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Article 83: Administrative Fines and Enforcement Sanctions

Infringements of core GDPR obligations are subject to administrative fines of up to 20 million EUR or 4% of total worldwide annual turnover.

Lesser violations regarding technical records and controller obligations face fines up to 10 million EUR or 2% of global turnover.

Supervisory authorities consider the gravity, duration, intentional or negligent character, and mitigation actions when setting fines.

Consent under Article 7 must be freely given, specific, informed, and unambiguous, demonstrated through an affirmative act.